

1. Special Demurrer

A special demurrer for uncertainty lies where the pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10(f).) Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Here, the complaint does not identify the particular causes of action, the defendant or defendants against whom each claim is asserted, or the basis for the checked box for contract claim. It is unclear if certain facts are intended to support some specific theories. The complaint therefore does not permit Defendants to determine the claims they must answer. This lack of clarity renders the complaint uncertain and is a proper ground for sustaining a special demurrer.

Here, the 1-page attachment to the form complaint does not allege the essential elements of a breach-of-contract claim: a contract, Plaintiff's performance or excuse, Defendants' breach, and resulting damage. The pleading does not identify any agreement to which Plaintiff and a defendant were parties, any contractual duty owed to Plaintiff, or any term allegedly breached. The complaint also checks the "Other" box under ¶8 but does not separately state another cause of action.

The Court sustains the demurrer in its entirety with 30 days leave to amend.

7.

CASE #	CASE NAME	HEARING NAME
UDME2600517	KERIAKOUS VS REESE	MOTION TO BE RELIEVED AS COUNSEL

Tentative Ruling: Motion unopposed. Motion **GRANTED**. Court will sign the proposed order. Attorney is relieved as counsel of record effective upon the filing of the proof of service of this signed order upon the client.